

5	Holland vs. South Orange County Community College District 2022-01265727	Motion re: Excluding Evidence The motion by Defendant South Orange County Community College District (“Defendant”) for an order excluding any evidence pertaining to Dr. Mark Ritchie pursuant to CCP section 2023.030, subdivision (b) and (c) is DENIED. Pursuant to Code of Civil Procedure section 2023.030, the court may issue terminating, evidentiary, issue, and/or monetary sanctions against a party engaging in conduct that is a misuse of the discovery process. Misuse of the discovery process includes: failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; and making an evasive response to discovery. (Code Civ. Proc. § 2023.010, subd. (d), (e), and (f).) Defendant has not shown Plaintiff Joy M. Holland engaged in conduct that constitutes a misuse of the discovery process. To the extent Defendant was unable to take Dr. Mark Ritchie’s deposition, Defendant withdrew Defendant’s motion to compel Dr. Ritchie’s deposition the morning of the hearing on the motion, after viewing the Court’s tentative ruling to deny the motion. (Notice of Withdrawal, ROA No. 248.) Contrary to Defendant’s contention, Defendant sought an order compelling Dr. Ritchie to comply with the deposition subpoena and was not simply an order compelling records as Defendant now contends in Defendant’s reply. (Motion to Compel, ROA No. 188; Reply, ROA No. 400, 5:23-25 and 5:28-6:1.) In addition, Dr. Ritchie’s most recent communications do not show a refusal to appear for a deposition. (Walsh Decl., ¶¶ 9 and 13, Exhibits 7 and 10.) Rather, Dr. Ritchie sets forth the limits of the testimony absent patient authorization or court order. (<i>Id.</i>) Although Plaintiff refused to sign the provided authorization, Defendant also did not show the overly broad scope of the authorization was warranted. (<i>Id.</i>, ¶¶ 10-11, Exhibit 8.) Accordingly, the motion is denied. Plaintiff shall give notice.
6	Mall vs. City of Santa Ana 2024-01372814	Motion for Judgment on the Pleadings The motion for judgment on the pleadings by Defendant City of Santa Ana (“Defendant”) as to the first cause of action for wrongful constructive termination in violation of public policy alleged in the Complaint filed by Plaintiff Keith Mall (“Plaintiff”) is GRANTED.